

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2025CUBC054217: ALEXANDER MATHIS, et al. vs FCA US LLC, et al.
09/22/2026 in Department 44
Demurrer to and Motion to Strike Portions of the First Amended Complaint
Case Management Conference

Department Rules. Parties and counsel shall follow the Department 44 rules and Zoom protocols, available at <https://www2.ventura.courts.ca.gov/Courtroom/C44>.

Remote Appearances. The Court allows Zoom appearances as a courtesy to parties and counsel. The Court does not accommodate Court Call appearances. **You MUST register by 3:00 p.m. the court day before your hearing or you will be DENIED entry to the hearing:**

ZOOM Registration Link:

<https://ventura-courts-ca.zoom.us/meeting/register/iqN7uhQSQMuOqs-9TQXgEQ>

No advance notice is required to appear in person.

Tentative Rulings. Oral argument should address the tentative decision. To submit on the tentative decision, email courtroom44@ventura.courts.ca.gov before 8:00 a.m. on the hearing date, copying all other parties. Use the subject line “SUBMISSION ON TENTATIVE”, [Case Number], [Case Title] and [Party]. If not all parties submit, the hearing will proceed, and the tentative ruling may change.

The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Notice of Ruling. Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d) and (e). The signed order shall be served on all parties and a proof of service filed with the court. A “notice of ruling” in lieu of this procedure is not authorized.

Nature of Proceedings:

- 1) Defendant FCA US LLC’s (“Defendant”) Demurrer to plaintiff Alexander and Stacy Mathis’ (“Plaintiffs”) Sixth Cause of Action for Fraudulent Concealment in the First Amended Complaint (“FAC”) (“Demurrer”)
- 2) Defendant’s Motion to Strike Portions of the FAC (“MTS”)
- 3) Mandatory Appearance Case Management Conference

Tentative Ruling:

Defendant's Demurrer is OVERRULED and the MTS is DENIED. With the addition of the factual allegations asserted in the FAC at paragraphs 9 – 11, Plaintiffs have now pleaded sufficient facts to state a cause of action for fraud by concealment. The Court overrules the demurrer under the reasoning of *Rattigan v Uber Technologies* (2024) 17 Cal.5th 1 [holding that fraud claim survives if defendant has a tort duty separate from warranty to refrain from alleged conduct, and if so, where plaintiff can establish elements of tort independent of warranty]) and following the dismissal of the petition for review in *Dhital v. Nissan North America, Inc.* (2022) 84 CA5th 828. In this case, the allegations are more detailed than those found to be sufficient in *Dhital*.

As to the MTS, Plaintiff has stated a claim for fraudulent concealment. If Plaintiff proves this claim at trial and also makes a showing by clear and convincing evidence that Defendant has acted with oppression, fraud, or malice, Plaintiff may recover damages under Civil Code section 3294, subdivision (a). Accordingly, Defendant's motion to strike is DENIED.

Defendant shall answer the FAC within 20 days.

The Court continues the mandatory appearance case management conference to **November 30, 2026, 2026 at 8:35 a.m.**

Plaintiff shall give notice.